

the Government concerned had not had an opportunity to comment. It therefore forwarded the draft monographs to the Governments concerned for verification and comment and revised them in the light of the observations received. Where no observations were received after several months, the Committee decided reluctantly to issue the monographs as conference room papers with an appropriate note indicating that the text had been forwarded to the Governments concerned. Altogether the Committee had prepared eighty-eight country-monographs which provided a basis for its study. 44. In its report, the Committee indicated the meanings of " arrest ", " detention ", and " exile ". It was of the view that " arbitrary " meant more than " illegal ", and that an arrest or detention was arbitrary if it was (a) on grounds or in accordance with procedures other than those established by law, or (b) under the provisions of a law the purpose of which was incompatible with the right to liberty and security of person (E/CN.4/826, paras. 23 to 30, article 1 of the draft principles). The report was divided into six parts. 45. Part I dealt with fundamental or constitutional principles relating to arrest, detention and exile. The fact that provisions concerning personal liberty were embodied in constitutions contributed to the protection of that liberty, since in most systems constitutions could be amended only in accordance with special procedures, and the courts were often directed to ensure that ordinary legislation conformed with the fundamental law. In part I, the Committee also considered some basic questions relating to the independence of the judiciary, since judges were vested with the greatest responsibility in matters relative to personal liberty. 46. Part II related to arrest and detention of persons accused of a criminal offence. This part was divided into four sections : (a) Section A dealt with the grounds upon which, and the procedures according to which, a person suspected or accused of a criminal offence might be arrested or detained ; duration and review of detention pending investigation and trial ; and provisional release. (b) The rights of an arrested or detained person were examined in section B : the right to be informed of his rights and obligations, and of the criminal offence ; the right to communication ; the right to obtain the assistance of counsel, to communicate with counsel, and to have him participate in the preliminary examination ; the rights relating to interrogations, including protection of the arrested or detained person against treatment which tends to impair his freedom of action, memory and judgement at interrogations ; and treatment in places of custody. (c) Section C was devoted to a study of the remedies available to the arrested or detained person, and to various sanctions for the violation of his rights. Special attention was given to the procedures which were available to the arrested or detained person, or to other persons on his behalf, to terminate wrongful detention and restore freedom : those included both regular appeals provided for in the code of criminal procedure and special remedies such as habeas corpus and amparo. Also dealt with in section C were penal and disciplinary sanctions, and compensation for wrongful arrest or detention. (d) Section D dealt with arrest and detention under administrative penal law. 47. In part III, the Committee considered various cases of detention on grounds unconnected with criminal law : detention of persons of unsound mind, of aliens pending deportation, detention on grounds of contempt of court, detention for debt, etc. 48. Part IV dealt with arrest and detention in emergency or exceptional situations. The Committee noted that, under the emergency laws of many countries, the right of everyone to personal liberty may be more restricted and judicial remedies may be available to a lesser extent, than under ordinary laws. 49. In part V, the laws and practices relating to exile and to banishment of a person within his own country were examined. 50. Part IV of the report contained draft principles on the right of everyone to be free from arbitrary arrest and detention. The question of exile was not dealt with since this institution was in the process of disappearing. Also, the Committee had refrained from coming out categorically for the complete abolition of exile since, in certain cases at least, exile might constitute a relatively humane substitute for incarceration. 51. The Commission considered the report at its 735th meeting, on 12 April 1962. It was generally agreed that the report, as well as the draft principles, dealt with very important questions on which Governments should be requested to submit comment. In view of this consideration and in view of the lack of time, the Commission decided to limit its discussion to a draft resolution (E/CN.4/L.625) of a procedural character submitted by the representatives of Afghanistan, Austria, Denmark, El Salvador and Venezuela, which read as follows : " The Commission on Human Rights, " Having taken note of the revised report of the Committee on the Right of Everyone to be Free from Arbitrary Arrest, Detention and Exile (E/CN.4/ 826 and Corr.1 and 2), including draft principles concerning freedom from arbitrary arrest and detention, " 1. Expresses its appreciation to the Committee for the study which it has made ; " 2. Decides to transmit the draft principles to States Members of the United Nations and its specialized agencies and to request them to submit comments thereon by 31 October 1962 ; " 3. Decides to consider the draft principles at its next session in the light of the comments of Governments. 8